



File No.: EXP202203538

RESOLUTION OF SANCTIONING PROCEDURE

From the procedure instructed by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: The Spanish Agency for Data Protection, through a complaint filed by a citizen (hereinafter, the complainant) on 03/02/2022, has become aware of certain facts that could violate the legislation on data protection, allegedly committed by A.A.A., with NIF ***NIF.1 (hereinafter, the accused party) in its capacity as the owner of a pharmacy located in ***LOCALIDAD.1 (***PROVINCIA.1). In the aforementioned complaint, the following facts and circumstances are highlighted:

The complainant states that, in a public container near their home designated for the disposal of household waste, they repeatedly find a large amount of health-related documentation containing personal data, such as patient medication sheets, prescriptions, sales tickets, delivery notes, originating from a pharmacy for which the accused party is responsible. They understand that appropriate security measures are not applied to this documentation to ensure the confidentiality of the sensitive data it contains.

They add that they also reported these facts to the (...) of ***PROVINCIA.1, of the (...), providing a sample of the papers collected from the container, separated by the days they were collected, and video evidence.

They attach a copy of the document submitted to the aforementioned (...) in which they warn that many people are affected and detail the personal data contained in the documentation found:

“1. There are numerous dispensing tickets, which show the Pharmacy, the Patient to whom the ticket corresponds, the detailed medication they take, and the next dispensing date. In their tickets, a difference can be observed between institutionalized patients and non-institutionalized patients.

2. There are numerous medication sheets, which contain all kinds of data. Name and Surname of the patients, CIP, CIPA, date of birth, TSI, Health Center to which they belong, their doctor, their nursing professional, and each and every one of the medications prescribed for that patient.”

Furthermore, the complainant informs that the first day they observed this conduct, on 27/08/2021, they alerted through the emergency phone 112. They also report that they verbally communicated the facts to the Civil Guard of the locality.

With their complaint, they provide images and videos in which various documents can be seen torn into several parts, always in a vertical direction, boxes and containers from C/ Jorge Juan, 6

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abandoned medications in a garbage container, accessible to any citizen. Among the documents torn into several pieces, simplified invoices (sales tickets), medication sheets and prescriptions, medication orders from the Municipal Residence of ***LOCALITY.1, patient medication calendars, and invoices and delivery notes containing the identifying details of the reported party can be distinguished.

SECOND: On 21/03/2022, the Director of the Spanish Agency for Data Protection urged the General Subdirectorate for Data Inspection (SGID) to initiate the preliminary investigation proceedings referred to in Article 67 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and the guarantee of digital rights (hereinafter, LOPDGDD) to investigate the reported party.

THIRD: The General Subdirectorate for Data Inspection proceeded to carry out preliminary investigation proceedings to clarify the facts in question, by virtue of the functions assigned to the control authorities in Article 57.1 and the powers granted in Article 58.1 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and in accordance with the provisions established in Title VII, Chapter I, Section two, of the LOPDGDD, being aware of the following points:

1. On 18/04/2022, the reporting party provided this Agency with a copy of the pendrive that, according to their complaint, was delivered to (...) of ***PROVINCE.1.

2. On the same date, collaboration was requested from the Civil Guard Post of ***LOCALITY.1 (hereinafter, GC) to inform this Agency of any proceedings and/or investigations that had been carried out in relation to the reported facts.

The Command of the Civil Guard of ***PROVINCE.1 reported that it has no record of any complaint from 27/08/2021 communicated by the Emergency Service 112 and that the reporting party, in an interview held on 07/04/2022, confirmed that they did not contact said Emergency Service. However, the GC adds that the reporting party provided them with a written complaint about facts that could constitute administrative infractions and various documentation, leading to an investigation initiated on 07/04/2022 by the members of the GC from the Post of ***LOCALITY.1 (***PROVINCE.1).

On 29/04/2022, the GC sent a copy of the images and videos (2 DVDs) that had been delivered by the reporting party, a copy of a complaint filed by them with the GC itself, a transparent plastic portfolio with reconstructed documentation, and a box with unreconstructed papers that includes a black plastic bag delivered by the reporting party to the GC and another white plastic bag with documentation that the GC agents themselves collected from the garbage containers near the pharmacy owned by the reported party.

This reconstructed documentation corresponds to three simplified invoices or sales tickets, one of which was issued on 30/03/2022 and the other two on 04/04/2022. The three tickets are presented torn into two vertical pieces, allowing access to all the information they contain.

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Between the submitted documentation, there are two "Exhibition Proceedings," dated 05 and 07/04/2022, which are noted in Proven Fact Three.

The GC sends this Agency a copy of an identification proceeding of the reported party, indicating them as the owner of (...) of ***LOCALITY.1 (***PROVINCE.1). This circumstance has also been verified by the Inspection Services of this Agency through the website of the Official College of Pharmacists of ***PROVINCE.1 (***URL.1).

And a "photographic report" that includes an aerial view of the municipality corresponding to the area where the pharmacy is located, with the following indication:

"...the location of the Pharmacy of this locality can be observed, and just 40 meters away are the organic waste containers where the documentation was deposited."

Regarding the images and videos sent to this Agency, both by the GC and the reporting party, the following should be highlighted:

1. A total of 49 images and 68 videos have been sent.
2. In general, broken documents are shown in several parts, mostly in a vertical orientation. In some cases, cardboard boxes and medication containers are observed.
3. Different types of documents can be distinguished, which are detailed in Proven Fact Two, indicating the personal data they contain.
4. The graphic documents (images and videos) have been collected by the reporting party on different dates, from October 2021 to January 2022.

As can be seen in the submitted images, the documentation dumped in the waste container is, in each case, very numerous and always appears piled up. Most of it appears thrown into the container without any type of packaging or wrapping. Only in some cases was it deposited inside a plastic or paper bag. This is also evident in the videos provided by the reporting party, in which it can be seen how the person recording approaches the waste container and shows the dumping of documents inside, which occupies a large part of the container, and then retrieves some of those documents to show them to the camera. This allows for verification that the dumped documents match the types previously mentioned.

The documents in the proceedings contain the personal data of dozens of affected individuals, including clients of the pharmacy and healthcare professionals.

3. On 20/06/2022, a written response from the reported party was received regarding the information

request made by the acting inspection, in which they state the following:

1. They claim to be unaware that documentation has been deposited in the waste containers and deny having any relation to this fact or that the individuals linked to them do.
2. They consider that a direct relationship between the material found and the reported party cannot be established, as there are other individuals who manage a pharmacy located in another municipality but sell medications in the same locality where the reported party's pharmacy is located. They note that these individuals live in the adjacent building, leading to the conclusion that they must use the same container.
3. Regarding the custody of material containing personal data in the pharmacy, the reported party indicates that prescriptions are kept in a closed place within the pharmacy until they are sent to the Ministry to receive the corresponding amounts, making it illogical to dispose of documents that ensure their funding.
4. Regarding the "medication sheets," they state that these are patient documents that are not delivered to the pharmacy.
5. In the pharmacy, besides the owner, only one employee works who, according to the reported party, "neither on her own initiative nor, much less, at my direction, deposits any material similar to that referred to in the complaint in any container."
6. In 2015, they acquired the pharmacy through transfer, in which there was already a paper shredder that they have been using from the very beginning (an image of this machine is attached).
7. They arranged with an external company (identified) for the implementation of the necessary protocols for the proper handling of personal data, of which they informed the only employee of the establishment.

With their response, the reported party provides the following documentation:

1. Informational circular for the treatment of video surveillance data, signed by the person (...) on 25/05/2021.
2. Confidentiality and professional secrecy commitments and instructions for data handling, signed by the person (...) on 01/08/2015 and 12/05/2020.
3. Declaration of the person (...), dated 15/06/2022, attesting that the paper shredder used regularly was acquired by the previous owner of the pharmacy and purchased by the current owner with the transfer.
4. Security policy for staff regarding the handling of personal data, signed by the reported party and the person (...) on 12/05/2020.

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In this policy on document disposal, it is stated that "Any physical document or digital medium that is to be disposed of and that includes personal data must be destroyed using a shredder or removed by an accredited document destruction company."

Furthermore, in the section "VII. Information Processing," it is expressly prohibited to engage in the following activities: "3. Destroy any physical document or digital medium that includes personal data without using a paper shredder or without keeping them properly secured until they are removed by an accredited document destruction company."

4. Document on the adaptation to the GDPR and LODGDD of the reported pharmacy establishment. Among other information, it includes details about the identity of the responsible party, personal data files used, authorized personnel, security policy, categories of personal data, international transfers, risk analysis, and retention periods.

5. On 01/07/2022, the (...) of ***PROVINCIA.1 of (...) responded to the request from the Inspection Services of this Agency, indicating that on 09/03/2022, they responded to the complainant regarding the filed complaint as follows:

"The documentation attached to the complaint, both in paper and graphic format, does NOT objectively and conclusively prove the direct causal authorship of the reported person concerning the previously

described irregularities, and therefore would not lead to the opening of a sanctioning file, unless complementary documentation is provided that allows for a direct and unequivocal connection of Ms. A.A.A., owner of the reported pharmacy, with the commission of the reported facts.”

FOURTH: In the context of the preliminary investigation actions mentioned in Background Three, on 11/05/2022, the Director of the Spanish Agency for Data Protection agreed to require the reported party to, as a precautionary measure, cease processing, refraining from continuing to deposit the documentation in the container and, if applicable, if destruction was warranted, to adopt the appropriate security measures.

FIFTH: On 27/06/2022, the acting Data Inspection accessed the available information about the reported party in “Axesor.” (...)

SIXTH: On 13/12/2022, the Director of the Spanish Agency for Data Protection agreed to initiate sanctioning proceedings against the reported party, in accordance with the provisions of Articles 63 and 64 of the LPACAP, for the alleged infringements of Articles 32.1 and 5.1.f) of the GDPR, classified under Articles 83.4.a) and 83.5.a) of the aforementioned GDPR, and categorized as serious and very serious for the purposes of prescription in Article 73.g) and Article 72.1.a) of the LOPDGDD, respectively.

In the opening agreement, it was determined that the sanction that could correspond, without prejudice to what results from the instruction, would be:

. For the alleged infringement of Article 32 of the GDPR, classified under Article 83.4.a)

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of the same Regulation, a fine of 4,000 euros (four thousand euros).

For the alleged violation of Article 5.1.f) of the GDPR, classified under Article 83.5.a) of the same Regulation, a fine of 6,000 euros (six thousand euros).

It was also warned that the alleged violations, if confirmed, could lead to the imposition of measures, according to the aforementioned Article 58.2 d) of the GDPR.

On the other hand, in said agreement, the provisional measure adopted on 11/05/2022 was confirmed during the preliminary investigation proceedings, ordering the reported party, in accordance with the provisions of Article 69 of the LOPDGDD and Article 56 of the LPACAP, to refrain from continuing to deposit documentation in the garbage container and, in the event that destruction was to occur, to adopt appropriate security measures. It was also warned that this provisional measure must be maintained until the final resolution of the procedure, in which it must be confirmed, modified, or lifted, without prejudice to the provisions of Article 56.5 of the LPACAP.

SEVENTH: Once the aforementioned initiation agreement was notified in accordance with the rules established in the LPACAP, the reported party submitted a written request for a copy of all the documentation in the file and an extension of the deadline granted to present allegations regarding the opening of the procedure.

Subsequently, on 29/12/2022, a written statement of allegations was submitted in which the request was made for the file to be closed or, alternatively, for another type of sanction to be imposed or for a substantial reduction of the amount of the fine, based on the following considerations:

- Not having access to the entire file prevents the normal exercise of the right to defense, is a cause of defenselessness, and violates the rights recognized to those involved in the sanctioning procedure in Article 53 of the LPACAP.

- There is no evidence whatsoever that proves the commission of the violations by the reported party, in clear violation of the principle of presumption of innocence and the principle of objectivity (Articles 24.2, 103.1 and 3 of the Constitution, Article 3.1 of Law 40/2015, on the Legal Regime of the Public Sector, as well as Article 6.1 of the ECHR). This has been established by the (...) of ***PROVINCE.1 of (...).

Moreover, the manner in which the complaint was filed and the alleged chance discovery of the documents raises suspicion that it is a relative of the owner of a pharmacy located in ***LOCALITY.2,

which supplies medications to residents of ***LOCALITY.1, being the (...) of ***LOCALITY.1- and with direct access to the documentation that was supposedly found in the garbage container near the pharmacy of the reported party and the house of this family, which uses the same container. There is also a close connection with the fact that the (...), has resolved a sanctioning file for non-compliance with health regulations due to an infringement committed by the family owning the pharmacy in ***LOCALITY.2, which justifies the vindictive intent guiding the actions of the complainant to give the appearance.

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to the false account that points to the reported party as the author of the alleged infractions. The only indication of authorship that points to the reported party is an identification procedure by the GC where it is stated that the declarant is “the holder of the only pharmacy in the locality of ***LOCALIDAD.1.” However, the AEPD has not taken into account that the pharmacy in ***LOCALIDAD.2 supplies medications to residents of ***LOCALIDAD.1 through distance selling. The reported party had adopted all necessary internal measures regarding the protection of personal data, as evidenced by the submission of the following documents (some of which were already submitted with the written allegations of 13/06/2022):

1. Certificate of adaptation to the GDPR and LODGDD dated 14/05/2020.
2. Confidentiality and professional secrecy commitment and instructions for data processing, signed by the person (...) on 01/08/2015 and 12/05/2020.
3. Certificate of guarantee of compliance with GDPR and LOPDGDD dated 14/05/2020.
4. Duty of information in documents with personal data dated 14/05/2020.
5. Report on the security policy of specific treatments dated 14/06/2022.
6. Certificate of Authorized Personnel to process personal data dated 14/06/2022.
7. Informative circular for the processing of video surveillance data signed by the person (...) on 14/05/2020.
8. Security policy for personnel for the processing of personal data, signed by the person (...) on 12/05/2020.

Thus, it should be noted that, of the different types of documents indicated in the complaint, the only ones that could be in the possession of the pharmacy would be the copies for the pharmacist of the medication prescriptions (not the copy of the prescription that must remain with the patient because it contains the supply schedule of the medication). This copy of the prescription is the means by which pharmacies charge the Administration for the amount of the supplied medications, so it makes no sense for a pharmacy to dispose of this copy. It states that it keeps this document in a locked place until its submission to the Administration.

On the other hand, the reported party indicates who is the holder of the rest of the documents mentioned in the Agreement. Thus:

1. Simplified invoices or sales tickets: these are documents given to the customer, with the business owner unaware of the destination that customers give to the products purchased at the establishment. Therefore, the legitimate holder of these documents and, consequently, the only one responsible for their destination is the patient/customer.
2. Medication sheets: these are issued by the Health Center or by the relevant specialist and are documents that the patient possesses, which are not delivered at the pharmacy. The reported party considers that the person who possesses these documents “will be” the patient or the (...) of ***LOCALIDAD.1. In this regard, it states that it does not know whether this person is the complainant themselves or a family member.
3. Reports of prescription of medications or health products: this is the same case as the previous type. They are issued by the Health Center and are held by the patient without...

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to be delivered to the pharmacy.

4. Medication orders from the Municipal Residence of ***LOCALIDAD.1: just like in the two previous cases, this is documentation issued by the residence itself, with no need or reason to deliver it to the pharmacy or for the pharmacy to possess such documents.

5. Medication calendars of the patients: as the name indicates, this is documentation belonging to the patients and not to the pharmacy. The documentation is issued by the Health Center or by the (...) of ***LOCALIDAD.1 and is held by the patient themselves, with no need to deliver it to the pharmacy.

6. Clinical discharge reports of patients: these are issued by the doctor, specialist, or nurse and have no relation to a pharmacy or the medicines sold therein.

7. Delivery notes for goods received by the pharmacy and issued invoices: it states that it is unaware of what these documents consist of, what they refer to, or the date that appears, as it has not had access to the complete file.

As a technical security measure, the pharmacy has a document shredder, which is used continuously for any type of paper, whether it contains sensitive data or not (provides a photograph), and which is in perfect working condition, as attested by the person (...) through a written statement dated 15/06/2022 that is attached.

Additionally, it adds that in recent months it has acquired another document shredder (photograph attached).

Finally, it adds that all technical and organizational security measures available to the pharmacy are periodically reviewed by an external company, with which the implementation of the necessary protocols for the proper handling of personal data protection has been contracted (contracts attached). In a subsidiary manner, regarding the grading of the sanction, it argues that the aggravating factors do not reflect reality and that the sanction is disproportionate.

It emphasizes that not a single complaint has been made by any clients or potential affected parties and suspects that the complaining party may have orchestrated the appearance of the documents in the trash container, improperly pointing to the accused party.

On the other hand, it understands that the warning measure is proportionate and appropriate for this type of procedure, especially considering that the authorship of the infringement has not been duly accredited.

EIGHTH: In response to the request made by the accused party, through a written statement dated 03/03/2023, a copy of the proceedings that make up the referenced sanctioning procedure was sent to them, incorporating into that copy the documentation, as well as images of some of the videos provided by the complaining party. In order for their request not to undermine other rights deserving of protection, the information relating to the complaining party was removed from the copy sent, and the videos containing information about third parties (the voice of the person making the recording) were excluded. It was considered

that the information removed from the documents and the exclusion of the indicated videos, whose content is similar to that of the videos that were attached, does not affect the right of defense of the claiming party, as the documentation submitted contains all the determining information in the procedure.

Due to the sending of this copy of the file, a new deadline was granted to the reported party to present allegations regarding the opening of the procedure, submit any documents they deem appropriate, and propose evidence. It was also noted that they have the right to know, at any time, the status of the processing and to submit allegations, utilize the means of defense permitted by the Legal System, and provide documents at any stage of the procedure prior to the hearing process.

In response to this document, on 08/03/2023, a new document was received from the reported party in which they indicate the insufficiency of the time granted to formulate allegations and the right to obtain a copy of the administrative file in its entirety.

By means of a document dated 28/03/2023, a copy of the videos that were excluded from the previous submission was sent, once the voice of the person recording them was removed. For this reason, a new deadline was granted to present allegations.

NINTH: On 13/04/2023, a new document of allegations from the reported party was received at this AEPD, in which they reiterate the request for the closure of the proceedings, basing their claim essentially on the same allegations already made. From what is stated in this document, the following should be highlighted:

1. They express their disagreement with the content of the grounds set forth in the Initiation Agreement and reaffirm and reproduce the allegations and legal arguments from their previous documents as they have not been refuted in the AEPD's Initiation Agreement.

2. Regarding the account of facts, they highlight that the claiming party claims to have found the documentation in a public container near their home, originating from the pharmacy owned by the reported party, but without incorporating any evidentiary proof of such association.

Regarding the documentation found, the reported party indicates that all documents may have been deposited in the container by anyone, including clients, the health center, suppliers, or the claiming party themselves. In fact, the only possible link between the pharmacy and the documentation with the container is its proximity to it, although this container is also located near the local medical center (140 meters) and the municipal residence, which also has access to much of the medical documentation of its patients.

According to the reported party, the purchase invoices are the only documentation that can be related to the pharmacy. However, this is accounting documentation without any personal data, which does not require confidential destruction, although this is the usual practice. These documents could be copies from the suppliers,

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that they deposit in the container once the delivery of the medications has been made.

The reported party understands that the instrumentalization by the reporting party of the role of the AEPD as a guarantor of personal data protection is obvious, and again points out that the reporting party is an employee and brother of the owner of the pharmacy located in ***LOCALIDAD.2, which has been irregularly selling and dispensing medications in the locality of ***LOCALIDAD.1 (accompanying a report from the Civil Guard regarding this alleged crime), as was confirmed by the (...) in the resolution of the appeal filed against the sanctioning resolution of the (...), dated 27/10/2021, which declares the commission of a serious infringement in the field of pharmaceutical regulation (the referred document is attached).

This fact is the reason why the reporting party attempts to seek redress against the reported party, employing the Public Administrations for this purpose. In fact, they previously attempted this with the (...).

In the opinion of the reported party, it is most logical to think that the documents are thrown away by the patients themselves upon leaving the pharmacy or the medical center, given their proximity, without the appearance of the name of the reported party on the purchase tickets constituting an association with an action of the pharmacy itself.

However, if we are to speculate, it could also be thought that the information is previously collected by the reporting party (whose family, to whom they refer in their complaint, resides in ***LOCALIDAD.1 and (...)), and subsequently is carefully torn and photographed before being deposited in the containers for later recording (which explains the immaculate condition of all the documents found in the container and the ease with which they are located in the recordings).

Moreover, in their complaint to the (...) of ***PROVINCIA.1, the reporting party goes so far as to state

(page 2 of their submission to this agency) that the pharmacy of the reported party "has medication sheets of patients who have not been their clients for some time." This implies that: 1) the reporting party knows which pharmacy the patients are clients of, and 2) if they are not clients of the reported party, the documents were deposited by someone unrelated to it.

Additionally, it is a proven fact that the reporting party lied when stating that on 27/08/2021 they notified the emergency service and reported the facts to the Civil Guard of the locality, as noted in previous writings.

3. There is no evidence of how the facts are directly linkable or associable to the reported party, nor any legally valid reasoning that allows for the imposition of authorship of such facts, nor proof or documentation.

The Agency indicates that the Civil Guard has provided evidence regarding the ownership of that documentation by the pharmacy. This assertion seems to be based solely on the fact that the name of the pharmacy appears on some of the documentation. This is reflected in the Conclusions of the Results of the AEPD Investigation Actions: "Although it cannot be affirmed that all the documentation found in the container belonged to the reported party, it can be concluded in a way...

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It is undisputed that part of it belongs to this one." The Agency does not specify or clarify what documentation "belongs" to the pharmacy and does not distinguish or enumerate whether such documentation contains personal data.

It is evident that the mere mention of the identifying data of the pharmacy does not constitute or prove that such documentation was in the possession of the pharmacy (which could logically be in the possession of the patient or interested party in question), much less that the location of such documentation in a public container corresponds to an action by the pharmacy. Therefore, this assertion contradicts not only the criteria for evaluating evidence applicable to the sanctioning administrative procedure but also clashes directly with any legal logic; as it infringes upon the principle of the presumption of innocence.

The Agency does not indicate what evidence allows for the assertion that such documentation has been abandoned by the reported party.

In this regard, the reporting party has presented their account to various authorities and organizations, as well as to the Security Forces and Corps, and none of them have taken action against the pharmacy, except for the AEPD, as they find the absence of a link between the submitted documentation and the reported party, to which the commission of certain acts is sought to be attributed solely based on a criterion of proximity. This has been stated by the (...) of ***PROVINCE.1 of (...), who also responded to the request from the Agency's Inspection Services indicating that authorship regarding the described irregularities is not proven.

It is neither understandable nor defensible that, having a prior procedure in which such conclusions are reached by another administrative body, the AEPD can arrive at the opposite conclusion without having carried out any additional evidentiary activity.

4. The Agency itself understands that there is no reason to link the findings with the entity issuing the documents in the proceedings indicated with the numbers E/00246/2010 ("This is not any document that must be safeguarded by the Center, and it is the patient themselves... who decides what to do with them") and E/03089/2009 ("This is not any document that must be safeguarded by the prescribing physician or the dispensing pharmacist, and it is the patient themselves, whose personal data is included in the referral, who decides what to do with them").

Consequently, the reported party finds itself in a clear state of legal defenselessness due to the unjustified change of criteria between analogous cases.

5. Regarding the qualification of the alleged infringement: challenge of the submitted documentation. The documentation has allegedly been located in a container in the locality of ***LOCALITY.1, but the means, reasons, or methods by which such documentation has been deposited therein are unknown.

None of the types of documentation listed in the Initiation Agreement can be associated with the reported party: they are not documents that the pharmacy has.

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obligation to preserve or safeguard; some are not even issued by pharmacies, but are documents issued by the health system of (...), and are provided to the patient. For example, medication sheets or other medical documents belonging to the patient, which are issued by medical or health centers. In fact, all the listed documents containing personal data correspond to documents that are given to patients, whether they come from the health center or the pharmacy. In the event that the referred documentation has indeed been deposited in the aforementioned container, the logical sequence of events is that patients (with their medical prescriptions, purchase receipts for medications, and medication sheets) deposit them in the container in question, either upon leaving the health center or upon leaving the pharmacy.

This factual account would also explain why there is no record or any complaint presented by interested parties or affected individuals in the present procedure.

In this regard, the accused party questions the evidentiary value of the documents in the file, proceeding to challenge them, in the terms of Article 326.2 of Law 1/2000, of January 7, on Civil Procedure; and Article 77.1 of Law 39/2015, given their lack of connection to this party. This latter article establishes:

“1. The facts relevant to the decision of a procedure may be proven by any admissible means of evidence in law, whose evaluation will be carried out in accordance with the criteria established in Law 1/2000, of January 7, on Civil Procedure.”

Thus, the AEPD has the obligation to analyze and evaluate the existing documentary evidence in accordance with the criteria of civil procedure. Having not evaluated the submitted evidence rigorously according to the applicable legal evaluation criteria, the Agency has generated a manifest situation of defenselessness for the accused party and violates their right to the presumption of innocence.

6. The accused party emphasizes the diligence and compliance with the regulations on data protection and their firm commitment to such regulations; and lists, as already communicated in previous writings, the measures and procedures implemented, which include a security policy for the processing of personal data, in which the absolute and express prohibition of destroying any documentation that includes personal data without the use of a shredder or without making it available to a duly certified company for the destruction of this specific type of documentation is established.

7. It warns about the defenselessness and the violation of fundamental rights that occurs, invoking the principle of culpability that governs in sanctioning matters, as their culpability or negligence has not been proven. Based on this, it understands that the AEPD cannot take into consideration in the present procedure, nor impose any sanction or weigh it, any fact for which the culpability of this party has not been established.

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The Supreme Court has reiterated in several rulings the validity of the principle of culpability, which must have its correlate in the existence of sufficient evidence and motivation for the concurrence of at least negligence; otherwise, there is a violation of the right to the presumption of innocence.

In the present case, as culpability or negligence of this party has not been proven by admissible evidence in law, the Agency has violated the essential content of the right to the presumption of innocence.

8. On the lack of proportionality of the proposed sanction.

In the hypothetical case that the Agency considers that there is some type of non-compliance, the sanction included in the Initiation Agreement is, in any case, disproportionate.

It should be noted that the reported party operates as a self-employed individual, with a turnover in the year 2021 amounting to (...). The proposed fine of 10,000 euros exceeds the margins stipulated in Articles 83.4 and 5 of the GDPR, and does not take into account what is indicated for these cases in Recital 148 of the same Regulation, which allows for a warning instead of a fine.

Regarding the aggravating circumstances assessed by the AEPD, the following is noted:

- The nature and severity of the infringement: the Agency has not conducted a detailed and specific assessment of the documents that can be associated with the pharmacy, nor does it analyze what specific information has been processed by this party. In this section, the nature and severity of the infringement attributed to this party, which refers to maintaining adequate security of personal data (Articles 5 and 32 of the GDPR), is not evaluated; instead, the reported party is associated with the reckless disposal of documentation without any proof or evidence.
- The duration of the infringement: the existing documentation does not allow for the establishment of the date on which the abandonment of the documentation may have occurred.
- The number of affected individuals and the nature of the harm caused to them is neither verified nor quantified by the Agency.
- The intent or negligence in the infringement: contradicting all applicable regulations, as well as the principles of compliance, the Agency considers the establishment of security measures and protocols regarding data protection by the pharmacy to be an aggravating factor. Again, this aggravating factor is not attributable to this party as the negligence or intent of the reported party in the action has not been evaluated, especially since the authorship of this has not been proven.
- The categories of personal data affected by the infringement: it is again noted that the Agency has not evaluated the specific data or documents associated with this party.

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The connection between the business activity of the accused and the processing of personal data of clients or third parties (Article 83.2.k of the GDPR in relation to Article 76.2.b of the LOPDGDD): according to the accused party, this connection does not imply a direct relationship with the alleged infringement. Article 83.2 k) requires that such aggravating factor be related to the specific factual situation.

Additionally, and as established in Article 83.2 of the GDPR and Article 76.2 of the LOPDGDD, besides the mitigating factor already expressly recognized by the AEPD in its initiation agreement, it considers that the following mitigating circumstances, which have not been taken into account, apply in this case:

- The absence of prior infringements.
- The degree of cooperation shown by the accused party, which has responded in a timely manner to all information requests made by this Agency, provided all contractual documentation and evidence of compliance with its obligations regarding data protection before it was requested, and expressed its good faith and intention to collaborate (Art. 83.2 f) GDPR).
- The non-existent benefit obtained as a result of the data processing that is the subject of this procedure.

On the other hand, it points out that the qualification of the facts made by the AEPD constitutes a clear infringement of the principle of “non bis in idem.” For these purposes, it is not legally admissible for that Agency to present two infringements derived from the lack of adequate security measures and, simultaneously, “another infringement due to the breach of the principle of privacy by design and by default,” since the former would necessarily be a consequence of the latter. In this regard, it is well known that our jurisprudence has repeatedly stated, as a fundamental principle of law, that the same fact cannot be sanctioned twice.

The application of this principle implies a manifest impossibility of imposing two or more administrative sanctions for the same fact, provided that there is an identity of fact, attributed to the same subject, and imposed on the basis of a common foundation regarding the protected legal good.

In this sense, it is essential to bring to attention the provisions of Article 29.5 of the LRJSP, which states: "When the commission of an infringement necessarily results in the commission of another or others, only the sanction corresponding to the most serious infringement committed shall be imposed." In any case, the measures in place at the time of the events complied with the most rigorous norms, guidelines, standards, and recommendations (including those issued by the AEPD itself) to address the risks and were adequate and suitable considering the state of the art, the costs of implementation, and the nature, scope, context, and purposes of the processing, as well as the risks to the rights and freedoms of individuals.

Therefore, the provisional measure stipulated by the Agency, consisting of the cessation...

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of the treatment allegedly carried out by throwing and abandoning documentation in the aforementioned public container, lacks practical effects, as such action or treatment has never been carried out by the reported party.

It also conveys its acceptance of any type of improvement proposal or recommendation from this Agency regarding compliance with the regulations.

TENTH: On 05/07/2023, a resolution proposal was made to sanction the reported party with a fine of 4,000 euros (four thousand euros) for the infringement of Article 32.1 of the GDPR, classified under Article 83.4.a) of the aforementioned GDPR, and qualified as serious for the purposes of prescription in Article 73.g) of the GDPR; and with a fine of 6,000 euros (six thousand euros) for the infringement of Article 5.1.f) of the GDPR, classified under Article 83.5.a) of the aforementioned Regulation, and qualified as very serious for the purposes of prescription in Article 72.1.a) of the LOPDGDD.

It was also proposed that the provisional measure agreed upon on 11/05/2022, during the preliminary investigation proceedings, confirmed in the agreement to open the current sanctioning procedure, be made definitive, and consequently, the reported party be required to adjust its actions to the personal data protection regulations within the timeframe determined, with the scope expressed in Legal Basis VIII of the resolution proposal, and to justify before this Spanish Agency for Data Protection the compliance with the corresponding requirement.

The notification of this resolution proposal was delivered to the reported party on 06/07/2023 via the Single Authorized Electronic Address (DEHÚ), granting them a period to submit allegations.

ELEVENTH: On 20/07/2023, a written statement of allegations to the resolution proposal was received in which the reported party reiterates and ratifies its previous allegations and again requests the dismissal of the procedure. From what is stated in this document, the following should be highlighted:

1. The reported party insists on pointing out that none of the facts allow linking the pharmacy to the throwing of documentation; which is also not related to the pharmacy (except for the delivery notes) and could have been deposited in the container by anyone; that the Agency does not justify why the proximity of the pharmacy to the container is sufficient to attribute the infringement nor does it consider in its proposal the proximity of the local medical center or the residence of the complainant's relatives to the same.

It also reiterates that the actions demonstrate the instrumentalization of the AEPD by the complainant, that they have lied in the proceedings, and that they have an interest in harming the reported party, with which they compete commercially.

For all these reasons, it understands that the procedure is based on mere indications whose source is debatable.

2. It considers that the AEPD bases its conclusions regarding the authorship of the infringement on the

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documentation that contains the name of the pharmacy (invoices), even though it has not been proven that it was ever in the possession of the reported party, understanding that the AEPD considers this sufficient to demonstrate the deposit of all documentation in the container, including that which does not contain data from the pharmacy nor has been issued by it.

In this reasoning, the proposed resolution excludes that the other interveners could have had access to all the documentation and does not explain why it considers that the reported party had access to it and deposited it in the trash container.

According to the reported party, the aforementioned contradicts the criteria for evaluating evidence applicable to the sanctioning administrative procedure, clashes directly with any legal logic, and violates the principle of the presumption of innocence.

Thus, it rejects the arguments included in the proposed resolution regarding the principle of culpability, stating that what is decisive in this case is the accreditation of authorship, the absence of evidence regarding the throwing away of documentation by the reported party, which prevents attributing any infringement to them.

In this regard, it again adds that this has been considered by the (...) of ***PROVINCIA.1 of (...) in their response to the information request from the Agency's Inspection Services and in the procedure that said Service processed, which has already been referenced. It finds it surprising that an Administration considers that authorship is not accredited while the Agency concludes otherwise.

3. It questions the evidential value of the documents in the file and challenges them, in the terms of Article 326.2 of Law 1/2000, of January 7, on Civil Procedure; and Articles 77.1 and 90.1 of Law 39/2015, given their lack of connection with this party. The AEPD has the obligation to analyze and evaluate the existing documentary evidence according to the criteria of civil adjudication, but, in this case, the evidence provided has not been rigorously evaluated according to the applicable legal evaluation criteria, generating a manifest situation of defenselessness for the reported party and violating the presumption of innocence.

It understands that the Agency cannot sustain the imputation of guilt based on mere statements lacking evidence, including mere assumptions or hypotheses.

In this regard, it points out that the procedure is based on the images and videos provided by the reporting party and the Civil Guard, but the method of obtaining those images and videos is not examined; and that the documents found cannot be associated with the reported party, as they are not documentation that this party is obliged to retain or safeguard, are not issued by said party, and are documents that the health system provides to patients.

This explains why no interested party has filed a complaint against the reported party, being very likely that the patients themselves discarded the documents into the container.

It also highlights that “not only is the method of obtaining the documentation unknown, but...”

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documentation in the present file -to which this party has only had access through photographs, of questionable legal validity- but rather that the very account of events is substantiated and recognized by the Agency itself that... (the complaining party) has manipulated the information: it has been transported to their home, where it has been manipulated and supposedly reconstructed. The exact dates of such actions are not substantiated; how does the Agency know that the throwing of the documentation into the container was not subsequent to its manipulation by... (the complaining party)? How does the Agency know that... (the complaining party) has not gathered the documentation at their home, as it has been recognized that they have done, to give an appearance of veracity to their account, and then carefully deposited it in the container, prior to making the recordings that they perform and send to the Agency, in which, curiously, they have perfectly identified in which part of the

container all the documentation is located?

4. Reiterates its firm commitment to the regulations and again lists the measures and procedures implemented by the pharmacy for compliance.

5. Invokes the principle of culpability and the right to defense, considering that the AEPD is based on mere assumptions lacking legal rigor and without any evidence to substantiate the culpability of the accused party.

6. In relation to the aggravating factors considered in the proposed resolution, the accused party alleges the following:

- . Nature and severity of the infringement: the Agency does not assess which documentation is related to the accused party and does not evaluate the security measures established in the pharmacy's procedures, so it cannot apply this aggravating factor.

- . Duration of the infringement: the documentation does not allow for the substantiation of the dates on which the throwing of documentation may have occurred. For this purpose, the date on which a document is issued or the statements of the parties are not sufficient.

- . Number of affected parties: the Agency does not even quantify the number of affected parties: it does not exhaustively evaluate the existing documentation, nor does it distinguish between the various documents. It has also not analyzed how many individuals or possible interested parties appear in the documentation in the file.

- . Damages caused to the affected parties: the possible affected parties are not examined nor have they been quantified.

- . Intentionality or negligence: the Agency considers the establishment of security measures and protocols regarding data protection by the pharmacy as an aggravating factor and has not evaluated the intentionality or negligence of the accused party, especially as it has not substantiated their authorship.

- . Category of data affected by the infringement: the Agency has not evaluated the specific data or documents associated with the accused party.

- . The link between the business activity of the accused and the processing of personal data of clients or third parties: while it is true that the activity of a pharmacy necessitates the processing of personal health data of its clients, this factor is ambiguous in its assessment for inclusion as an aggravating factor, as such a link does not imply, by any means, a direct relationship with the alleged infringement.

7. Additionally, it again alleges the infringement of the principle of "non bis in idem," rejecting the exposition made in this regard in the proposed resolution to justify the imposition of two infringements derived from the lack of adequate security measures. For these purposes, contrary to what the Agency has stated, it considers Article 29.5 of the LRJSP applicable, due to the supplementary application of administrative law to the procedures instructed by the Agency, as indicated in Article 3 of its Statute.

8. Finally, the accused party warns about the suitability of the measures in force at the time of the events to address the risks and states that the provisional measure stipulated, consisting of the cessation of the supposedly carried out treatment of throwing or abandoning documentation in the garbage container, lacks practical effects concerning the accused party, given that such action has not been carried out by them.

From the actions taken in the present procedure and the documentation in the file, the following have been substantiated:

PROVEN FACTS

FIRST: The accused party is the owner of
(...)

of

***LOCALITY.1

(***PROVINCE.1).

SECOND: On 03/02/2022, a complaint was received by the AEPD in which the complaining party states that, in a public container near their home designated for the deposit of domestic waste, they repeatedly find a large amount of health-related documentation containing personal data, originating from a pharmacy for which the accused party is responsible.

The complaint included 49 images and 68 videos, which show a large amount of documents discarded

in a garbage container, always the same one. The documents appear piled up, in most cases without any type of packaging or wrapping, and torn by hand into several large fragments (between two and four fragments for each document, mostly torn vertically), which do not prevent viewing the information they contain. In fact, some of the images show these documents reconstructed.

In the submitted videos, it can be seen how the person recording approaches the garbage container and shows the discarded documents inside, which occupy a large part of the container, and then reaches for some of those documents and shows them to the camera.

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According to the images and recordings, these graphic documents were collected by the complainant on different dates, from October 2021 to January 2022.

The documents in the proceedings contain the personal data of dozens of affected individuals, including clients of the pharmacy owned by the accused party and healthcare professionals.

Both in the images and in the submitted videos, the following types of documents can be distinguished, which contain the information detailed in each case:

1. Simplified invoices (sales receipts) corresponding to the dispensing of medications to patients: they include the pharmacy's data (owner, NIF, address, and phone number); the full name and CIP (Personal Identification Code) of the patient; the invoice data (date, payment method, dispensed medications, and amount); upcoming dispensations (date and medication); end date for the collection of medications; and canceled medications. This type of document is the most numerous among those found in the trash container.
2. Medication sheets from (...): health center data (address and phone number); patient data (full name, CIP, CIPA -Automatic Personal Identification Code- and date of birth); physician data (full name and CPF -a code that usually coincides with the registration number); nurse data (full name); medication data (prescribed medication, DE -breakfast-, CO -lunch- and CE -dinner-, AC -before meals-, posology, patient instructions, prescription date, and end/renewal date).
3. Medication prescriptions from (...), MUFACE or ISFAS: patient data (full name, membership number/CIP, and age); medication data (prescribed medication, treatment duration, and posology); and prescriber data (full name, registration number, date, and signature).
4. Prescription reports for medications or healthcare products (ISFAS): patient data (name and surname, ISFAS number, and date of birth); physician data (full name, registration number, specialty, and signature); diagnosis data (diagnosis and date of the next review); and treatment (medication, regimen/posology, and duration).
5. Medication orders from the Municipal Residence of ***LOCALITY.1 (**PROVINCE.1): full name of the patient and prescribed medication.
6. Clinical discharge reports: name and address of the patient; clinical report data (unit, date, time, and reason for discharge); prescribed treatment (medication, regimen/posology, and duration).
7. Delivery notes for goods received by the pharmacy (accused party) and issued invoices in the name of the same: includes client data (accused party) related to name, NIF, and address; order data and list of products.

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products.

. Postal mail envelopes in which the details of the reported party are listed as the recipient.

THIRD: The Civil Guard became aware of the facts detailed in the First Proven Fact through the reporting party. On 05/04/2022, a patrol from the Civil Guard accessed the domestic waste container near the pharmacy establishment of the reported party, formalizing the corresponding "exposure

report," dated the same day, in which the finding of documents related to the clients of said establishment is recorded, "such as copies of medication sheets, invoices with personal data, and others that contain prescriptions for medications, also with personal data." This report continues stating:

"Therefore, subsequently at 21:15 hours, the acting agents, along with the informant, went to corroborate these facts. Finding inside the aforementioned container, the previously mentioned documents, collecting some of these that are accessible, as they are on the top and can thus be picked up by hand. That these are torn by hand in half and in different pieces. That countless documents can be observed at the bottom of the container and that it lacks a lid on top. A photographic report of the mentioned collected documents is attached."

The Civil Guard also provided another "Exposure Report" dated 27/04/2022, which again refers to the action of 05/04/2022 mentioned in the previous report:

"Likewise, on April 5, 2022, at the request of the complainant, a patrol from the Civil Guard of the ***LOCALITY.1 station arrived at the organic waste containers on the aforementioned street, observing numerous documents inside and collecting part of them in which what at first glance could be sales tickets from the local pharmacy can be seen, showing the medications purchased and the dates of the medications for upcoming dispensations, along with the name of the patient. These documents are torn in half.

Additionally, documents torn into four parts are collected, one side of which is a delivery note for medication to the pharmacy in the locality of ***LOCALITY.1 located on the street... and the name of the owner... (name and surname of the reported party) and printed on the reverse is what may be an electronic prescription where the name of the patient, the healthcare personnel assisting them, as well as the medical prescriptions can be observed.

The complainant provides digital documentation, videos, and photographs with the date taken where the repeated manner of this pharmacy in disposing of sensitive documentation can be observed, along with a black plastic bag containing numerous documents."

FOURTH: According to the checks carried out by the Civil Guard, the pharmacy establishment of the complainant is approximately 40 meters away from the waste container in which the documents subject to the proceedings were found.

FIFTH: The reported party has a Personnel Security Policy for
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the processing of personal data, signed by the reported party and the person (...) on the day 12/05/2020.

In this policy, regarding the destruction of documents, it is stated that "Any physical document or digital medium that is to be destroyed and that includes personal data must be destroyed with a shredder or removed by an approved document destruction company."

Furthermore, in section "VII. Information Processing" it is stated that the following activities are expressly prohibited: "3. Destroying any physical document or digital medium that includes personal data without using a paper shredder or without keeping them properly secured until they are removed by an approved document destruction company."

LEGAL GROUNDS

I

Competence

According to the powers granted to each supervisory authority by Article 58.2 of the GDPR, and as established in Articles 47, 48.1, 64.2, and 68.1 of the LOPDGDD, the Director of the Spanish Data Protection Agency is competent to initiate and resolve this procedure.

Moreover, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Data Protection Agency will be governed by the provisions of Regulation (EU) 2016/679, by this organic law,

by the regulatory provisions issued for its development, and, as long as they do not contradict them, subsidiarily by the general rules on administrative procedures.”

II

Obligation Breached. Data Security

The reported facts materialize in the repeated abandonment of documentation in a waste container located in a public area, accessible by any third party, which contains personal data corresponding to clients of the reported party and healthcare professionals, violating the regulations on data protection. The security of personal data is regulated in Articles 32, 33, and 34 of the GDPR.

Article 32 of the GDPR, “Security of Processing,” establishes the following:

“1. Taking into account the state of the art, the costs of implementation, and the nature, scope, context, and purposes of the processing, as well as the risks of varying likelihood and severity for the rights and freedoms of natural persons, the controller and the processor shall implement appropriate technical and organizational measures to ensure a level of security appropriate to the risk, which may include, among others:

a) the pseudonymization and encryption of personal data;

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b) the ability to ensure the confidentiality, integrity, availability, and permanent resilience of processing systems and services;

c) the ability to restore the availability and access to personal data quickly in the event of a physical or technical incident;

d) a process of regular verification, assessment, and evaluation of the effectiveness of technical and organizational measures to ensure the security of processing.

2. In assessing the adequacy of the level of security, particular consideration shall be given to the risks presented by the processing of data, particularly as a consequence of the destruction, loss, or accidental or unlawful alteration of personal data transmitted, stored, or otherwise processed, or the unauthorized communication or access to such data.

3. Adherence to an approved code of conduct pursuant to Article 40 or to an approved certification mechanism pursuant to Article 42 may serve as an element to demonstrate compliance with the requirements set out in paragraph 1 of this article.

4. The controller and the processor shall take measures to ensure that any person acting under the authority of the controller or the processor and having access to personal data may only process such data on instructions from the controller, unless required to do so by Union or Member State law.

The GDPR defines personal data security breaches as “all breaches of security that result in the destruction, loss, or accidental or unlawful alteration of personal data transmitted, stored, or otherwise processed, or the unauthorized communication or access to such data.”

It should be noted that the GDPR does not establish a list of security measures applicable according to the data being processed, but rather states that the controller and the processor shall implement technical and organizational measures that are appropriate to the risk posed by the processing, taking into account the state of the art, the costs of implementation, the nature, scope, context, and purposes of the processing, and the risks of likelihood and severity for the rights and freedoms of data subjects. Furthermore, the security measures must be adequate and proportionate to the identified risk, indicating that the determination of technical and organizational measures should be made taking into account: pseudonymization and encryption, the ability to ensure confidentiality, integrity, availability, and resilience, the ability to restore availability and access to data after an incident, and a process of verification (which is not an audit), assessment, and evaluation of the effectiveness of the measures. In any case, when assessing the adequacy of the level of security, particular consideration shall be given to the risks presented by the processing of data, as a consequence of the destruction, loss, or accidental or unlawful alteration of personal data transmitted, stored, or otherwise processed, or the

unauthorized communication or access to such data that could cause physical, material, or immaterial damage.

In this same sense, Recital 83 of the GDPR states that:

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“(83) In order to maintain security and prevent processing from infringing the provisions of this Regulation, the controller or the processor must assess the inherent risks of the processing and apply measures to mitigate them, such as encryption. These measures must ensure an adequate level of security, including confidentiality, taking into account the state of the art and the cost of their implementation in relation to the risks and the nature of the personal data that needs to be protected. When assessing the risk in relation to data security, the risks arising from the processing of personal data must be considered, such as the accidental or unlawful destruction, loss, or alteration of personal data transmitted, stored, or otherwise processed, or the unauthorized communication or access to such data, which may particularly cause physical, material, or immaterial harm.”

In this case, the documentation in the file evidences the breach of Article 32.1 of the GDPR by the reported party, caused by a possible violation of the security of personal data that has allowed third parties to access the data contained in documents that were abandoned by the same in a public place. In this regard, the graphic evidence included in the proceedings demonstrates that the documents were found in a garbage container located on public thoroughfare, very close to the location of the pharmacy establishment owned by the reported party, as well as the belonging of that documentation to that establishment.

In the images and videos sent to this Agency, both by the Civil Guard and the reporting party, various documents can be observed torn into several parts, in a condition that does not prevent the visibility of the information they contain. Among them, simplified invoices or sales tickets (which include a medication calendar for the patients), medication sheets and prescriptions, medication prescription reports, medication orders, and clinical discharge reports of the patient can be distinguished.

The Civil Guard itself, as stated in the formal proceedings conducted during its intervention, has confirmed both the location where the documentation was found and its type.

It is also noted that such documents contain a variety of personal data of patients, mainly name, surname, date of birth, and patient code, diagnosis, and prescribed medication. In Proven Fact Two, the information contained in each of the types of documents thrown into the garbage container is described in detail.

The aforementioned documentation was found in the garbage container mixed with other documents, such as delivery notes or invoices issued in the name of the owner of the pharmacy itself (the reported party) by its suppliers, which include their identifying data (name, NIF, and postal address), and postal envelopes that include the data of the reported party as the recipient of the shipment.

The abandonment of this documentation, which could only have been in the possession of the reported party, is valid evidence to prove the origin of the documents found in a public container. If only the reported party could have been in possession of such documents, which were thrown into the container simultaneously with the others, it must be understood that all of them were abandoned there by the same.

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Therefore, the hypothesis presented in the allegations received is rejected, according to which the documentation in question was deposited in the container by third parties unrelated to the pharmacy establishment, such as, according to the accused party, the same accusing party or a relative of theirs, who (...) has access to some of the documents found; the patients themselves; the health center; or

the suppliers of the establishment.

Each of the third parties mentioned by the accused party could have had access to some of the documents, but none of them could possess all the types of documents referred to in the proceedings. Thus, the staff of the health center, the health center itself, or the patients listed in the found documents have access to documents such as medication sheets, medical prescriptions, or discharge clinical reports, but in no case to the medication orders from the ***LOCALIDAD.1 residence or to the delivery notes and invoices issued in the name of the accused party or the envelopes used in postal shipments addressed to the same. Similarly, the pharmacy suppliers have access to the indicated accounting documentation, but do not have access to the medical documentation. The same can be said for the Municipal Residence of ***LOCALIDAD.1, which knows its own medication order sheets, but not the rest of the documentation. Finally, the simplified invoices or sales tickets, which constitute the largest volume of documentation involved in the facts, belong to the patient but are issued by the accused party.

It is also unacceptable that all of them, the cited third parties and the accused party itself, coincided in the same place and on so many different days to deposit that documentation in the garbage container (considering the date of the images and videos provided, the Inspection Services of this Agency have concluded that the reported facts occurred, at least, from October 2021 to January 2022). Even less so, considering the large number of documents that were thrown into the container on some occasions.

On the other hand, it is noted that the found documents were torn by hand in several parts (between two and four fragments for each document, mostly torn vertically, which do not prevent viewing the information they contain), but not destroyed using a paper shredder, despite the establishment having such a machine and the security policy adopted by the accused party stating that "Any physical document or digital medium that is to be eliminated and that includes personal data must be destroyed with the shredder or removed by a certified document destruction company."

It is also noted that the discovery of documents always occurred in the same container, the one closest to the establishment of the accused party, and that on many occasions it appears as a genuine dumping of a large number of documents, which are piled up inside the container, occupying a significant part of this receptacle. In no case are these documents thrown individually by different people.

As indicated in the Established Facts, the videos provided show how

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The person recording approaches the garbage container and shows the existing dumping of documents inside, which occupies a large part of the receptacle, and subsequently reaches for some of those documents to show them to the camera, allowing verification that the dumped documents match the types indicated previously.

The reasoning set forth above, which was already included in the resolution proposal, sufficiently addresses the allegations made by the complainant regarding the lack of evidence proving the authorship of the infractions.

Contrary to what the complainant has stated, the conclusions drawn are not based on the account of events or mere assertions from the complainant, but rather on the graphic evidence and documentation provided in the proceedings, not only by the complainant but also by the Civil Guard, which carried out the necessary interventions to confirm the dumping of documents in the aforementioned garbage container and the types of documents found.

The throwing away of documentation and its relation to the pharmacy, considering its type and origin, are not mere indications.

As can be appreciated in those reasonings, the evidence has been appropriately evaluated with all the rigor of legal logic.

On the contrary, the arguments made by the accused party to support their allegations are illogical when they deny that the documentation issued in their name, such as invoices or delivery notes, ever came into their possession. The same can be said for the envelopes used in postal shipments addressed to the owner of the pharmacy or the orders made by the municipal residence, documents that are also among those found in the garbage container, but which are not mentioned by the accused party in their allegations. In the opinion of this Agency, the mere denial that this documentation ever came into the possession of the pharmacy or the insinuation that the senders of these documents were the ones who threw them into the container, simultaneously with the throwing away of the other documents by other third parties and on the numerous occasions this occurred, is not sufficient to undermine the evaluation of the evidence.

It is also not acceptable to assert that these third parties (patients, suppliers, healthcare personnel, etc.) could have had access to all the documentation, nor other claims contained in the written allegations of the accused party, according to which the documentation was abandoned by the patients themselves, despite the fact that the documentation found includes documents that could never have been available to them.

According to the accused party, the facts do not link the pharmacy to the documentation. However, in the opinion of this Agency, it is the documentation that links the pharmacy to the finding of said documentation in a public place. A finding that is not disputed by the accused party as much as its authorship is.

On the other hand, the accused party questions the evidentiary value of the indicated documentary evidence and claims to challenge it in accordance with the provisions of Article 326.2.

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of Law 1/2000, of January 7, on Civil Procedure, regarding the challenge of the authenticity of private documents. However, no reasoning is presented that questions the authenticity of such evidence, nor is any means of proof proposed in this regard, so that the documentation is assessed in accordance with the rules of sound criticism, in accordance with the same provision invoked.

In short, the facts presented demonstrate that the reported entity has not effectively respected the appropriate technical and organizational measures to guarantee the security and confidentiality of the data, especially those aimed at preventing access to the information by unauthorized third parties. The suitability or adequacy of the measures and protocols implemented by the reported party to ensure the security of the information for which it is responsible, which are evidenced in the file, is not questioned in this act, but rather their non-compliance by the reported party, which has led to access by third parties to such information.

Consequently, in accordance with the evidence presented, the aforementioned facts constitute a violation of the provisions of Article 32 of the GDPR, which gives rise to the application of the corrective powers that Article 58 of the aforementioned Regulation grants to the Spanish Data Protection Agency.

In light of all the above, the absence of culpability alleged by the reported party cannot be accepted, considering that its culpability or negligence has not been proven.

The principle of culpability is required in sanctioning procedures, and thus the STC 246/1991 considers it inadmissible in the field of administrative sanctioning law to have responsibility without fault.

However, the principle of fault does not imply that only intentional or voluntary actions can be sanctioned.

In this regard, it is worth citing the SAN of January 21, 2010, in which the Court states:

“The appellant also maintains that there is no culpability in its actions. It is true that the principle of culpability prevents the admission of objective responsibility in administrative sanctioning law; it is also true that the absence of intent is secondary since this type of infringement is normally committed through culpable or negligent actions, which is sufficient to integrate the subjective element of fault. The actions of XXX are clearly negligent as... it must know... the obligations imposed by the LOPD on

all those who handle personal data of third parties. XXX is obliged to guarantee the fundamental right to the protection of personal data of its clients and potential clients with the intensity required by the content of the right itself.”

The Supreme Court (Judgments of April 16 and 22, 1991) considers that from the element of culpability it follows that “...the action or omission, qualified as a sanctionable infringement, must, in any case, be attributable to its author, whether by intent or negligence, imprudence, or inexcusable ignorance.” The same Court reasons that “it is not enough... for exculpation against a typically unlawful behavior to invoke the absence of fault” but rather “it is necessary that the diligence that was required by the one alleging its non-existence has been employed” (STS January 23, 1998).

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Also connected with the degree of diligence that the data controller is required to exercise in fulfilling the obligations imposed by data protection regulations, the SAN of 17/10/2007 (Rec. 63/2006) can be cited, which specified: “(...) the Supreme Court has understood that there is negligence whenever a legal duty of care is neglected, that is, when the offender does not behave with the required diligence.”

Furthermore, the National Court in matters of personal data protection has declared that “simple negligence or failure to comply with the duties imposed by the Law on the persons responsible for files or data processing to exercise heightened diligence is sufficient...” (SAN 29/06/2001). In this case, the facts presented demonstrate that the reported party did not act with the diligence to which it was obligated, causing a loss of confidentiality linked to the non-observance of a series of implemented security measures, caused precisely by that lack of diligence. In this regard, the Judgment of the Supreme Court of February 15, 2022 (Rec. 7359/2020) indicates that “It is not enough to design the necessary technical and organizational means; their correct implementation and appropriate use are also necessary, so that it will also be liable for the lack of diligence in their use, understood as reasonable diligence considering the circumstances of the case.”

This lack of diligence on the part of the reported party, as the data controller, in observing the security measures is what constitutes the element of culpability.

It is therefore concluded, contrary to the objections raised by the reported party, that the subjective element is indeed present in the declared infringement.

On the other hand, in response to the allegations of the reported party, it is necessary to point out that it is not for this Agency to assess the decisions made by other Public Administrations that were aware of the reported facts, which the reporting party repeatedly refers to in their written allegations.

However, it should be indicated in this regard that such decisions are not binding for this Agency, which adopts its decisions in accordance with the provisions of personal data protection regulations and in accordance with the principles and norms governing the sanctioning administrative procedure. Nor is it for this Agency to determine the reasons why the reported party was in possession of the documentation discarded in the container.

The subjective reasons that may have led the reporting party to file their complaint are not relevant to the process, but only the objective facts that determine the infringements.

Regarding the precedents cited by the reported party, highlighting that in the respective cases this Agency decided to archive the proceedings considering that the documentation abandoned in the public thoroughfare belonged to the patients, whose custody does not correspond to the prescribing physician or the pharmacist.

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dispenser, the following should be noted:

- In one of the cases (E/00246/2010), the documentation found consisted solely of the "copy of the insured" of approximately ten parts of "authorizations for diagnostic tests and treatment" from a medical society, found in the garbage container located next to a medical center, which had incident records that certified the destruction of similar documents when they were abandoned in the clinic by the interested parties.

- In the other case (E/03089/2009), the documentation found in the public thoroughfare corresponded to the "instruction leaflet for the patient" that accompanies the body of the prescriptions issued by the health service of Castilla La Mancha, which was found outside the territory of this Autonomous Community. This documentation belonged to patients residing in a Geriatric Residence that had contracted the supply of medications with an external entity, so it could not be linked to the Public Administration that issued the prescriptions with the finding of documentation.

III

Unfulfilled obligation. Duty of confidentiality

On the other hand, Article 5 of the GDPR establishes the principles that must govern the processing of personal data and mentions, among them, the principle of "integrity and confidentiality":

"1. Personal data shall be:

(...)

f) processed in such a way as to ensure an adequate security of personal data, including protection against unauthorized or unlawful processing and against accidental loss, destruction or damage, by means of appropriate technical or organizational measures ("integrity and confidentiality").

(...)"

The documentation available provides sufficient evidence to conclude that the reported party violated Article 5.1.f) of the GDPR, which regulates the duty of confidentiality, materialized in the access by third parties to the personal data of the affected individuals included in the documentation referred to in the previous Legal Basis, which was found in a garbage container by a private individual (the complainant), who accessed the personal information contained in that documentation. This constitutes a dissemination of personal data for which the reported party does not have a legal basis to legitimize it.

This duty of confidentiality aims to prevent unauthorized leaks of data by their holders.

Consequently, in accordance with the evidence presented and also considering what is stated in the previous Legal Basis, the aforementioned facts constitute a violation of the provisions of Article 5.1.f) of the GDPR, which gives rise to the application of the corrective powers that Article 58 of the aforementioned Regulation grants to the Spanish Agency for Data Protection.

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IV

Response to the "non bis in idem" allegation

The accused party invokes the principle of "non bis in idem," which prevents the imposition of two or more administrative sanctions for the same act, and cites the provisions of Article 29.5 of the LRJSP, which states that "when the commission of an infringement necessarily results in the commission of another or others, only the sanction corresponding to the most serious infringement committed shall be imposed."

It should be noted in this regard that Article 29 of the LRJSP does not apply to the sanctioning regime imposed by the GDPR, as it is a directly applicable European regulation in the Member States, which contains a new, closed, complete, and global system aimed at ensuring the uniform protection of personal data throughout the European Union.

In relation to the sanctioning regime established therein, its provisions apply immediately, directly, and integrally, providing a complete and gapless system that must be understood, interpreted, and integrated absolutely, completely, and integrally, thus preserving its ultimate purpose, which is the

effective and real guarantee of the fundamental right to the Protection of Personal Data. The contrary would result in a diminishment of the guarantees of the rights and freedoms of citizens.

In fact, a specific example of the absence of gaps in the GDPR system is Article 83 of the GDPR, which determines the circumstances that may operate as aggravating or mitigating factors regarding an infringement (Article 83.2 of the GDPR) or specifies the existing rule concerning a possible concurrent offense (Article 83.3 of the GDPR). The latter provision establishes the following:

“3. If a controller or processor intentionally or negligently violates various provisions of this Regulation for the same processing operations or related operations, the total amount of the administrative fine shall not exceed the amount provided for the most serious infringements.”

In addition to the above, we must add that the GDPR does not allow for the development or specification of its provisions by the legislators of the Member States, except for what the European legislator has specifically provided, delimiting it very concretely (for example, the provision of Article 83.7 of the GDPR). The LOPDGDD only develops or specifies some aspects of the GDPR to the extent that it allows and with the scope that it permits.

This is so because the purpose intended by the European legislator is to establish a uniform system throughout the European Union that guarantees the rights and freedoms of natural persons, corrects behaviors contrary to the GDPR, promotes compliance, and enables the free movement of such data. In this sense, Recital 2 of the GDPR states that,

“(2) The principles and rules relating to the protection of natural persons with regard to the processing of their personal data must, regardless of their nationality or residence, respect their fundamental freedoms and rights, in particular the right to...

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protection of personal data. This Regulation aims to contribute to the full realization of a space of freedom, security, and justice, and to an economic union, to economic and social progress, to the strengthening and convergence of economies within the internal market, as well as to the well-being of individuals.”

It further indicates in Recital 13 of the GDPR that,

“(13) To ensure a consistent level of protection for individuals throughout the Union and to avoid divergences that hinder the free movement of personal data within the internal market, a regulation is necessary that provides legal certainty and transparency to economic operators, including microenterprises and small and medium-sized enterprises, and offers individuals from all Member States the same level of enforceable rights and obligations and responsibilities for controllers and processors, in order to ensure consistent oversight of personal data processing and equivalent sanctions across all Member States, as well as effective cooperation between the supervisory authorities of the different Member States. The proper functioning of the internal market requires that the free movement of personal data in the Union is not restricted or prohibited for reasons related to the protection of individuals with regard to the processing of personal data.”

For this system to function with all its guarantees, it is necessary for several elements to be deployed in an integral and complete manner. The application of rules foreign to the GDPR in each of the Member States applying their national law, such as the application of a different remedial competition than that provided in the GDPR, would undermine the effectiveness of the system, losing its meaning and teleological purpose, resulting in fines imposed for different infringements ceasing to be effective, proportionate, and dissuasive (Article 83.1 of the GDPR). In this way, individuals would also be deprived of the effective guarantee of their rights and freedoms, weakening the uniform application of the GDPR. The mechanisms for protecting the rights and freedoms of citizens would be diminished, which would be contrary to the spirit of the GDPR.

The GDPR is endowed with its own principle of proportionality that must be applied in its strict terms.

Furthermore, there is no legal gap regarding the application of remedial competition that makes the supplementary application of Article 29 of the LRJSP necessary, which is not provided for in the GDPR

or by the LOPDGDD.

In Title VIII of the LOPDGDD relating to "Procedures in the event of a possible breach of data protection regulations," Article 63 that opens the Title states that "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development, and, insofar as they do not contradict them, subsidiarily by the general rules on administrative procedures." While there is a clear reference to the LPACAP, there is absolutely no establishment of a subsidiary application regarding the LRJSP, which does not contain any provision in its articles relating to any "administrative procedure."

In the same way that the AEPD is not applying the aggravating and mitigating factors provided in Article 29 of the LRJSP, since the GDPR establishes its own, by

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Therefore, there is no legal gap nor subsidiary application of the same, nor does the application of the section relating to joint proceedings apply for the same reasons.

In light of the above, the accused party defends in its allegations to the proposed resolution the supplementary application of administrative law to the procedures conducted by the Agency, as indicated in Article 3 of its Statute. This issue is not disputed, but it does not extend to Article 29.5 of the LRJSP for the reasons indicated.

Furthermore, in the present case, sanctions are imposed for the violations resulting from non-compliance with the provisions established in Articles 5.1.f) and 32 of the GDPR. Confidentiality and data security are fundamentally reflected in these two independent provisions of the GDPR. Article 5.1.f) of the GDPR is one of the principles relating to processing. The principles relating to processing are, on one hand, the starting point and the closing clause of the legal framework for data protection, constituting true guiding rules of the system with intense expansive force; on the other hand, due to their high level of specificity, they are mandatory norms that can be infringed. Well, Article 5.1.f) of the GDPR encompasses the principle of integrity and confidentiality and determines that personal data shall be processed in such a way as to ensure an adequate level of security for personal data, including protection against unauthorized or unlawful processing and against accidental loss, destruction, or damage, through the application of appropriate technical or organizational measures. It establishes an obligation of result, not objective.

On the other hand, Article 32 of the GDPR regulates how security in processing should be articulated in relation to the specific security measures that must be implemented, so that taking into account the state of the art, the costs of implementation, and the nature, scope, context, and purposes of the processing, as well as the varying probability and severity risks to the rights and freedoms of natural persons, the controller and the processor shall implement appropriate technical and organizational measures to ensure a level of security appropriate to the risk that includes, among other things, the ability to ensure the confidentiality of the data.

As we can see, Article 32 of the GDPR, although related to Article 5.1.f) of the GDPR, does not encompass the principle in its entirety. Article 5.1.f) of the GDPR explicitly requires that confidentiality be guaranteed and requires a loss of confidentiality for its attribution. We may encounter situations where there are inadequate measures without a loss of integrity and confidentiality.

For the reasons stated, there is no breach of the principle of "non bis in idem," since there is no identity of facts or legal grounds.

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Classification and qualification of the violations

The violation of Article 32 of the GDPR is classified in Article 83.4.a) of the aforementioned GDPR in the following terms:

“4. Violations of the following provisions shall be sanctioned, in accordance with paragraph 2, with administrative fines of up to 10,000,000 EUR or, in the case of an enterprise, an amount equivalent to up to 2% of the total annual global turnover of the previous financial year, opting for the higher amount:

a) the obligations of the controller and the processor under Articles 8, 11, 25 to 39, 42, and 43.

(...)”.

For its part, the LOPDGDD in its Article 71, Violations, states that:

“Acts and behaviors referred to in paragraphs 4, 5, and 6 of Article 83 of Regulation (EU) 2016/679, as well as those that are contrary to this organic law, constitute violations.”

And in its Article 73, for the purposes of prescription, qualifies as “Violations considered serious”:

“Based on what is established in Article 83.4 of Regulation (EU) 2016/679, the following are considered serious and shall prescribe in two years: violations that constitute a substantial breach of the articles mentioned therein and, in particular, the following:

(...)”.

g) The breach, as a result of a lack of due diligence, of the technical and organizational measures that should have been implemented in accordance with the requirements of Article 32.1 of Regulation (EU) 2016/679.

(...)”.

On the other hand, non-compliance with the provisions established in Article 5.1.f) of the GDPR constitutes the commission of a violation classified in paragraph 5.a) of Article 83 of the GDPR, which under the heading “General conditions for the imposition of administrative fines” provides the following:

“5. Violations of the following provisions shall be sanctioned, in accordance with paragraph 2, with administrative fines of up to 20,000,000 EUR or, in the case of an enterprise, an amount equivalent to up to 4% of the total annual global turnover of the previous financial year, opting for the higher amount:

a) the basic principles for processing, including the conditions for consent under Articles 5, 6, 7, and 9.”

For the purposes of the prescription period, Article 72 of the LOPDGDD indicates:

“Article 72. Violations considered very serious.

1. Based on what is established in Article 83.5 of Regulation (EU) 2016/679, the following are considered very serious and shall prescribe in three years: violations that constitute a substantial breach of the articles mentioned therein and, in particular, the following:

a) The processing of personal data in violation of the principles and guarantees established in the C/ Jorge Juan, 6

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Corrective Powers

In the event of a violation of the provisions of the GDPR, among the corrective powers available to the Spanish Data Protection Agency, as the supervisory authority, Article 58.2 of said Regulation provides for the following:

“2 Each supervisory authority shall have all of the following corrective powers:

(...)”.

b) issue a warning to any controller or processor when the processing operations have infringed the provisions of this Regulation;”

(...)”.

d) order the controller or processor to bring the processing operations into compliance with the provisions of this Regulation, when appropriate, in a specified manner and within a specified time;

(...)

i) impose an administrative fine in accordance with Article 83, in addition to or instead of the measures mentioned in this paragraph, depending on the circumstances of each particular case.”

According to the provisions of Article 83.2 of the GDPR, the measure provided for in the previous letter d) is compatible with the sanction consisting of an administrative fine.

VII

Sanction

With respect to the violations of Articles 32 and 5.1(f) of the GDPR, considering the facts presented and without prejudice to the outcome of the procedure's instruction, it is considered that the sanction that would correspond to be imposed is an administrative fine.

In order to determine the administrative fine to be imposed, the provisions of Articles 83.1 and 83.2 of the GDPR must be observed, which state:

“1. Each supervisory authority shall ensure that the imposition of administrative fines in accordance with this Article for the violations of this Regulation indicated in paragraphs 4, 9, and 6 are, in each individual case, effective, proportionate, and dissuasive.

2. Administrative fines shall be imposed, depending on the circumstances of each individual case, as an additional or substitute measure for those provided for in Article 58, paragraph 2, letters a) to h) and j). In deciding to impose an administrative fine and its amount in each individual case, the following shall be duly taken into account:

a) the nature, gravity, and duration of the infringement, taking into account the nature, scope, or purpose of the processing operation in question as well as the number of data subjects affected and the level of damage suffered;

b) the intentionality or negligence in the infringement;

c) any measures taken by the controller or processor to mitigate the damage suffered by the data subjects;

d) the degree of responsibility of the controller or processor, taking into account...

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of the technical or organizational measures that have been applied pursuant to Articles 25 and 32;

e) any previous infringement committed by the controller or the processor;

f) the degree of cooperation with the supervisory authority in order to remedy the infringement and mitigate the possible adverse effects of the infringement;

g) the categories of personal data affected by the infringement;

h) the manner in which the supervisory authority became aware of the infringement, in particular whether the controller or the processor notified the infringement and, if so, to what extent;

i) when the measures indicated in Article 58, paragraph 2, have been previously ordered against the controller or processor in relation to the same matter, compliance with such measures;

j) adherence to codes of conduct under Article 40 or to certification mechanisms approved under Article 42, and

k) any other aggravating or mitigating factor applicable to the circumstances of the case, such as the financial benefits obtained or the losses avoided, directly or indirectly, through the infringement.”

For its part, Article 76 “Sanctions and corrective measures” of the LOPDGDD states:

“1. The sanctions provided for in paragraphs 4, 5, and 6 of Article 83 of Regulation (EU) 2016/679 shall be applied taking into account the criteria for graduation established in paragraph 2 of the aforementioned article.

2. In accordance with the provisions of Article 83.2.k) of Regulation (EU) 2016/679, the following may also be taken into account:

a) The continued nature of the infringement.

b) The connection of the infringer's activity with the processing of personal data.

c) The benefits obtained as a result of the commission of the infringement.

- d) The possibility that the conduct of the affected party may have induced the commission of the infringement.
- e) The existence of a merger by absorption after the commission of the infringement, which cannot be attributed to the absorbing entity.
- f) The impact on the rights of minors.
- g) Having, when not mandatory, a data protection officer.
- h) The voluntary submission by the controller or processor to alternative dispute resolution mechanisms, in cases where there are disputes between them and any interested party.”

In addition to what has been stated, the provisions of Article 83.1 of the GDPR must be considered, according to which “Each supervisory authority shall ensure that the imposition of administrative fines under this article for the infringements of this Regulation indicated in paragraphs 4, 5, and 6 are, in each individual case, effective, proportionate, and dissuasive.”

In this case, considering the severity of the established infringements, particularly regarding the nature of the affected personal data, the imposition of a fine is warranted, in addition to the adoption of measures. The request made by the reported party for the imposition of other corrective powers that would have allowed for the correction of the irregular situation, such as a warning, which is provided for minor infringements or when it concerns natural persons and the sanction constitutes a disproportionate burden, cannot be accepted. Recital 148 of the GDPR refers to this issue in the following terms:

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“(148) In order to reinforce the application of the rules of this Regulation, any infringement of it must be punished with sanctions, including administrative fines, in addition to appropriate measures imposed by the supervisory authority under this Regulation, or in substitution of these. In the case of a minor infringement, or if the fine that would likely be imposed constitutes a disproportionate burden for a natural person, a warning may be imposed instead of a fine...”.

The present case does not fit any of the assumptions provided for in the GDPR, as

- (i) none of the infringements for which sanctions are imposed is classified as minor;
- (ii) the non-compliances that motivate the imposition of sanctions occur within the framework of the professional activity of the reported party, which therefore does not intervene in the facts under the condition of a natural person, in the sense contemplated in the regulation; and
- (iii) the fine imposed does not constitute a disproportionate burden for the reported party.

The fine imposed must be, in each individual case, effective, proportionate, and dissuasive, in accordance with the provisions of Article 83.1 of the GDPR. Thus, the status of a small business and the turnover of the reported party are considered in advance (...).

In accordance with the indicated provisions, for the purpose of determining the amount of the sanctions to be imposed in the present case, it is considered appropriate to grade the sanctions according to the following criteria established by the transcribed provisions:

1. Infringement of Article 32 of the GDPR, classified under 83.4.a) of the aforementioned GDPR, and qualified as serious for prescription purposes in Article 73.g) of the GDPR:

The following aggravating grading criteria are deemed concurrent:

. Article 83.2.a) of the GDPR: “a) the nature, gravity, and duration of the infringement, taking into account the nature, scope, or purpose of the processing operation in question as well as the number of affected data subjects and the level of damage and harm they have suffered.”

. The nature and gravity of the infringement, considering the nature of the personal information referred to by the infringing conduct.

The reported party considers that this grading factor cannot be considered since the Agency does not assess what documentation is related to the reported party, although this is a matter that has already been justified throughout this act.

It also understands that the security measures established in the pharmacy's procedures should be

evaluated. However, the infringements that are sanctioned result from the failure to attend to the measures adopted by the responsible party.

In any case, these issues differ from what was expressed earlier when assessing the nature and gravity of the infringement, which, in the opinion of this Agency, results from the nature of the personal information referred to in the facts.

. Regarding the duration of the infringement, it is recorded in the proceedings that the infringing conduct occurred repeatedly over several months.

That the infringements occur over a prolonged period is an established fact, resulting not only from the dates of the documents but also from the graphic evidence provided, whose recording relates to the dates of the documents found, and the time elapsed between the complaint in February 2022 and the checks carried out on new abandonments of documentation by the Civil Guard in April of the same year.

. Number of affected data subjects: the infringement affects dozens of clients of the reported party and healthcare professionals.

It is not necessary for these purposes to distinguish the affected data subjects among the various types of documents, as the reported party indicates.

. The nature of the harm caused to the affected individuals, who have seen an increased risk to their privacy.

On this issue, the reported party argues that the possible affected individuals have not been examined or quantified, which is more related to the previous grading factor than to the one concerning the harm suffered by the affected individuals.

. Article 83.2.b) of the GDPR: "b) the intent or negligence in the infringement."

In this case, the negligence of the reported party must be classified as "serious," as they had established the relevant security measures and had the means to implement them.

In this regard, consideration is given to what was stated in the Judgment of the National Court of 17/10/2007 (rec. 63/2006), which, starting from the fact that these are entities whose activity involves continuous data processing, indicates that "...the Supreme Court has understood that there is negligence whenever a legal duty of care is disregarded, that is, when the infringer does not behave with the diligence required. And in assessing the degree of diligence, special consideration must be given to the professionalism or lack thereof of the subject, and there is no doubt that, in the case now examined, when the activity of the appellant involves constant and abundant handling of personal data, it must be insisted on the rigor and exquisite care to comply with the legal provisions in this regard."

The reported party systematically processes personal data related to health and must exercise extreme care in fulfilling its obligations regarding the protection of such data.

This Agency understands that diligence must be deduced from conclusive facts that are duly accredited and directly related.

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with the elements that constitute the infringement, in such a way that it can be deduced that it has occurred despite all the means provided by the responsible party to prevent it. In this case, the actions of the reported party do not have this character.

Negligence is considered based on the fact that the reported party did not respect its own security measures, not on the fact that it adopted them, obviously.

. Article 83.2.g) of the GDPR: "g) the categories of personal data affected by the infringement."

These are personal data related to the health of individuals, particularly deserving of guarantees.

. Article 76.2.b) of the LOPDGDD: "b) The link between the infringer's activity and the processing of personal data."

The strong link between the infringer's activity and the processing of personal data related to the health of individuals, considering the activity it carries out.

This Agency does not agree with the assertion made by the reported party in its allegations regarding the non-existence of a relationship between this grading factor and the sanctioned infringements. It is also considered that the following circumstances occur as mitigating factors:

. Article 83.2.k) of the GDPR: “k) any other aggravating or mitigating factor applicable to the circumstances of the case, such as the financial benefits obtained or the losses avoided, directly or indirectly, through the infringement.”

The merely local scope of the facts constituting the infringement.

Considering the factors presented, the assessment of the fine for the infringement of Article 32 of the GDPR is 4,000 euros (four thousand euros).

2. Infringement of Article 5.1 f) of the GDPR, classified under Article 83.5.a) of the aforementioned Regulation, and qualified as very serious for prescription purposes in Article 72.1.a) of the LOPDGDD: The same criteria for aggravating and mitigating factors indicated in the previous case are considered concurrent.

Considering the factors presented, the assessment of the fine for the infringement of Article 5.1.f) of the GDPR is 6,000 euros (six thousand euros).

The amounts of the proposed sanctions, contrary to what was indicated by the reported party in its allegations regarding the opening of the procedure, are within

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of the limits established in articles 83.4.a) and 83.5.a). This Agency does not share the idea expressed in those allegations regarding the impossibility of the sanction to be imposed exceeding 2% or 4% of the annual turnover of the responsible entity, depending on whether the infringements are classified under article 83.4.a) or 83.5.a), respectively. These articles establish a fine amount equivalent to the indicated percentages concerning the annual turnover, or a fine of 10 or 20 million as a maximum, with the higher amount being chosen.

In this regard, it has already been stated that when establishing the amount of the proposed fine, the turnover and the condition of being a small business of the reported party have been taken into account.

On the other hand, the reported party considers that the absence of prior infringements should be valued as a mitigating factor. However, none of the aggravating factors considered is mitigated by the fact that the reported entity has not been subject to a sanctioning procedure previously. In this regard, the Judgment of the AN, dated 05/05/2021, rec. 1437/2020, indicates that “... article 83.2 of the GDPR establishes that the following circumstances must be taken into account for the imposition of the administrative fine, among others, the circumstance 'e) any previous infringement committed by the controller or the processor.' It is an aggravating circumstance, and the fact that the prerequisite for its application does not occur means that it cannot be taken into consideration, but it does not imply or allow, as the claimant intends, its application as a mitigating factor.”

Similarly, the mitigating factor related to the degree of cooperation shown by the reported party must be rejected, which it values solely based on the mere fact of having responded to the requests made by the services of this Agency.

On this matter, in the guidelines 04/2022, regarding the calculation of administrative fines under the GDPR, adopted by the European Data Protection Committee on 24/05/2023, it is stated that “the general obligation to cooperate lies with the controller and the processor according to article 31 of the GDPR, and the lack of cooperation may lead to the application of the fine provided for in article 83, paragraph 4, letter a), of the GDPR. Therefore, it must be considered that the ordinary duty of cooperation is mandatory and, therefore, should be considered neutral (and not a mitigating factor)” (unofficial translation).

The same can be said regarding the absence of benefits also alleged as a mitigating factor by the reported party. On this criterion, article 76.2 of the LOPDGDD, in its letter c), includes among the

criteria that must be weighed when setting the amount of the sanction “the benefits obtained as a result of the commission of the infringement” and not the absence of these benefits. The same Judgment of the National Court cited, dated 05/05/2021, refers to the need for the “prerequisite” of fact contemplated in the regulation to be present for a certain grading criterion to be applied, and, as stated, the absence of benefits is not among the circumstances regulated in the cited article. This grading criterion is established in the LOPDGDD in accordance with the provisions of article 83.2.k) of the GDPR, according to which administrative fines will be imposed.

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taking into account any “aggravating or mitigating factor applicable to the circumstances of the case, such as the financial benefits obtained or the losses avoided, directly or indirectly, through the infringement,” understanding that avoiding a loss has the same nature for these purposes as obtaining benefits. If we add to this that the sanctions must be “effective, proportionate, and dissuasive in each individual case,” in accordance with the provisions of Article 83.1 of the GDPR, admitting the absence of benefits as a mitigating factor is not only contrary to the factual premises contemplated in Article 76.2.c), but also contrary to what is established in Article 83.2.k) of the GDPR and the principles indicated. Thus, valuing the absence of benefits as a mitigating factor would nullify the dissuasive effect of the fine, to the extent that it diminishes the effect of the circumstances that effectively influence its quantification, providing the responsible party with a benefit to which they are not entitled. It would be an artificial reduction of the sanction that could lead to the understanding that infringing the regulation without obtaining benefits, financial or otherwise, would not produce a negative effect proportional to the seriousness of the infringing act.

In any case, the administrative fines established in the GDPR, in accordance with the provisions of Article 83.2, are imposed based on the circumstances of each individual case and, in this instance, it is not considered that the absence of benefits is an adequate and determining factor for assessing the seriousness of the infringing conduct. Only if this absence of benefits is relevant to determining the degree of unlawfulness and culpability present in the specific infringing action can it be considered as a mitigating factor, applying Article 83.2.k) of the GDPR, which refers to “any other aggravating or mitigating factor applicable to the circumstances of the case.”

Nothing is indicated in the allegations to the proposed resolution made by the accused party regarding the limits of the sanctions to be imposed or about the mitigating factors whose application was requested in the allegations to the opening of the procedure, analyzed previously.

Furthermore, the accused party questions the factors and criteria for grading taken into account when establishing the proposed fine, but does so based on the same reasons already presented and rebutted concerning the non-existence of an infringement and the absence of evidence supporting the authorship of the facts and the assessed circumstances.

VIII

Adoption of measures

Once the infringements have been confirmed, it is appropriate to impose on the accused party the obligation to adopt adequate measures to adjust their actions to the regulations mentioned in this act, in accordance with the provisions of the aforementioned Article 58.2 d) of the GDPR, according to which each supervisory authority may “order the controller or processor to ensure that the processing operations comply with the provisions of this Regulation, where appropriate, in a specified manner and within a specified period...”. The imposition of this measure is compatible with the sanction.

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consisting of an administrative fine, in accordance with the provisions of Article 83.2 of the GDPR.

The text of this proposed resolution establishes what the violations committed have been and the facts that give rise to the breach of data protection regulations, from which it is clearly inferred what measures are to be adopted, without prejudice to the fact that the type of procedures, mechanisms, or specific instruments for implementing them correspond to the sanctioned party, as it is the data controller who fully knows its organization and must decide, based on proactive responsibility and a risk-based approach, how to comply with the GDPR and the LOPDGDD.

However, in this case, regardless of the above, it is appropriate to require the reported party to cease the processing in question within the timeframe determined in the operative part, refraining from continuing to deposit documentation containing personal data of third parties in a publicly accessible location and, if applicable, to ensure that appropriate security measures are adopted for the destruction of the documentation in question.

It should be noted that within the framework of the preliminary investigation actions carried out by this Agency, it was agreed to require the reported party, as a precautionary measure subsequently confirmed in the agreement to open the present procedure, to cease the conduct of depositing documentation with personal information in a waste container near the establishment it manages.

Therefore, the measure imposed is equivalent to making the precautionary measure definitive.

This measure is contested by the reported party in its allegations to the proposed resolution, but it does so again under the guise of its refusal to acknowledge the authorship of the violations, which has already been sufficiently analyzed in this act.

Finally, it is warned that failure to comply with the requirements of this agency may be considered an administrative violation in accordance with the provisions of the GDPR, classified as a violation in its Articles 83.5 and 83.6, which may lead to the initiation of further administrative sanctioning procedures.

Therefore, in accordance with the applicable legislation and having assessed the criteria for the graduation of the sanctions whose existence has been established,

the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO IMPOSE on A.A.A., with NIF ***NIF.1, the following fines:

- For a violation of Article 32 of the GDPR, classified under Article 83.4.a) of the aforementioned GDPR, and qualified as serious for the purposes of prescription in Article 73.g) of the GDPR, a fine of 4,000 euros (four thousand euros).

- For a violation of Article 5.1 f) of the GDPR, classified under Article 83.5.a) of the aforementioned Regulation, and qualified as very serious for the purposes of prescription in Article 72.1.a) of the LOPDGDD, a fine of 6,000 euros (six thousand euros).

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SECOND: TO RAISE TO DEFINITIVE THE PROVISIONAL MEASURE agreed on May 11, 2022, during the preliminary investigation proceedings, and confirmed in the agreement to open the present sanctioning procedure. Consequently, A.A.A., with NIF ***NIF.1, is required to adjust its actions to the personal data protection regulations, within the scope expressed in Legal Basis VIII, within one month from the notification of this act, and to justify before this Spanish Agency for Data Protection the compliance with the corresponding requirement.

THIRD: NOTIFY this resolution to A.A.A.

FOURTH: Warn the sanctioned party that they must fulfill the imposed sanction once this resolution becomes executive, in accordance with the provisions of Article 98.1.b) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter LPACAP), within the voluntary payment period established in Article 68 of the General Collection Regulation, approved by Royal Decree 939/2005, of July 29, in relation to Article 62 of Law 58/2003, of December 17, by making the payment, indicating the NIF of the sanctioned party and the procedure number that appears in the heading of this document, to the restricted account No. IBAN: ES00 0000 0000 0000 0000 0000 (BIC/SWIFT Code: XXXXXXXXXXXX), opened in the name of the Spanish Agency for Data Protection at the banking entity CAIXABANK, S.A. Otherwise, collection will proceed in the executive

period.

Upon receipt of the notification and once it is executive, if the date of executiveness falls between the 1st and the 15th of each month, inclusive, the deadline for voluntary payment will be until the 20th of the following month or the next business day, and if it falls between the 16th and the last day of each month, inclusive, the payment deadline will be until the 5th of the second following month or the next business day.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative route in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file an administrative contentious appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and paragraph 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law. Finally, it is noted that in accordance with the provisions of Article 90.3 a) of the LPACAP, the firm resolution in the administrative route may be provisionally suspended if the interested party expresses their intention to file an administrative contentious appeal. If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Agency for Data Protection, submitting it through the Electronic Registry of the Agency

[<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in Article 16.4 of the aforementioned Law 39/2015, of October 1. They must also provide the Agency with documentation that proves the effective filing of the administrative contentious appeal. If the Agency is not aware of the filing of the administrative contentious appeal within two months from the day following the notification of this resolution, it will consider the provisional suspension to be concluded.

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Mar España Martí

Director of the Spanish Agency for Data Protection

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